

Professional Services Agreement

PROFESSIONAL SERVICES AGREEMENT

This Professional Services Agreement ("Agreement") is entered into on the date set forth on the signature page by and between ConsultPro LLC ("Consultant") and BetaWorks Inc. ("Client").

1. SERVICES AND DELIVERABLES

Consultant will provide the professional services described in each Scope of Work ("SOW") attached hereto. Consultant shall perform all services in a professional and workmanlike manner, in accordance with industry standards. Consultant shall not subcontract any portion of the Services without Client's prior written consent, which shall not be unreasonably withheld.

2. COMPENSATION AND PAYMENT

Client shall pay Consultant the fees set forth in each SOW. Fees are fixed for the duration of the applicable SOW and may not be increased without mutual written agreement. Consultant will invoice Client monthly in arrears. Payment is due within 45 days of invoice date. Late payments shall accrue interest at 0.5% per month. Consultant may suspend services only after providing 15 business days' written notice of non-payment and only if the disputed amount exceeds \$5,000.

3. TERM AND TERMINATION

This Agreement shall continue for 12 months from the Effective Date and may be renewed by mutual written agreement. Either party may terminate this Agreement or any SOW for convenience upon 30 days' written notice. Either party may terminate immediately upon written notice if the other party commits a material breach and fails to cure within 30 days of receiving written notice specifying the breach.

4. LIMITATION OF LIABILITY

Neither party excludes liability for: (a) death or personal injury caused by its negligence; (b) fraud or fraudulent misrepresentation; (c) breach of confidentiality obligations; (d) infringement of intellectual property rights; or (e) any liability that cannot be excluded by applicable law. Subject to the foregoing, each party's total aggregate liability shall not exceed the total fees paid under the applicable SOW. Neither party shall be liable for indirect or consequential damages.

5. INTELLECTUAL PROPERTY

All work product created by Consultant under any SOW shall be owned by Client upon full payment of fees. Consultant retains the right to use general knowledge, skills, and experience gained during performance. Consultant agrees to execute all documents reasonably necessary to perfect Client's ownership rights.

6. CONFIDENTIALITY

Each party agrees to maintain the confidentiality of the other's confidential information for a period of 5 years. Confidential information may be shared only with personnel who have a need to know and are bound by equivalent confidentiality obligations. Each party shall return or destroy the other's confidential information within 60 days of a written request upon termination.

7. DATA SECURITY

Consultant agrees to implement and maintain appropriate technical and organizational security measures, including encryption of data in transit and at rest, access controls, regular security assessments, and breach notification within 48 hours. Consultant shall comply with all applicable data protection laws. A Data Processing Agreement is attached as Exhibit B.

8. GOVERNING LAW

This Agreement shall be governed by the laws of the State of Delaware. Any dispute arising out of this Agreement shall be resolved through good-faith negotiations, then mediation, and finally binding arbitration in Wilmington, Delaware. Each party shall bear its own legal fees, and the arbitrator may award fees to the prevailing party if the other party's position was frivolous.